

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

January 11, 2024

**Judge Melissa R. McCormick
Dept. CX104**

Department CX104 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5304. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Bond v. KPG Healthcare LLC 2020-01140084	<u>Plaintiff's Motion for Final Approval of Class Action Settlement and Motion for Award of Fees and Costs</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a class action settlement and motion for awards of fees and costs. The court has the following questions and comments:

		1. The Garcia Declaration (ROA 155, ¶ 6) states that the settlement administrator received one “valid” for exclusion. Were any other exclusion requests, “valid” or otherwise, received? The settlement administrator should provide a supplemental declaration addressing this question. 2. The Garcia Declaration (ROA 155, ¶ 7) states that the settlement administrator received one objection form (from Michael James Vann), and that the settlement administrator determined that Vann is not a class member and had returned an objection form sent to class member Candace Coleman. The Garcia Declaration states that the settlement administrator deemed Vann’s objection invalid because Vann is not a class member. Did the settlement administrator contact Coleman and determine whether Coleman wanted to object? Did the settlement administrator determine why Vann returned Coleman’s objection form and/or what Vann’s relationship, if any, is to Coleman? The settlement administrator should provide a supplemental declaration addressing these questions. 3. Were any disputes received? The settlement administrator should provide a supplemental declaration addressing this question. 4. What was the net settlement amount? The settlement administrator should provide a supplemental declaration addressing this question. 5. What was the response deadline? What was the response deadline for remailed notices? Have any disputes, objections or requests for exclusion been received since the settlement administrator executed the declaration (ROA 155) on December 13, 2023? The settlement administrator should provide a supplemental declaration addressing these questions. 6. As the proposed order and judgment, the following issues should be addressed: a. The proposed order and judgment should revised as necessary to be consistent with the above; b. In paragraph 1, the reference to the settlement agreement should also refer to the amendment to the settlement agreement; c. Because the settlement agreement and amendment to the settlement agreement are attached as an exhibit to the proposed order and judgment, the parties should consider whether it would be preferable to cite the relevant section of the settlement agreement
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		and/or amendment to the settlement agreement rather than setting forth the text in paragraph 4; and d. The proposed order and judgment must state how notice of entry of the order and judgment will be provided. The hearings on plaintiff's motion for final approval and motion for award of fees and costs is continued to <u>April 18, 2024 at 2:00 p.m.</u> in Department CX104 to enable the parties to address and respond to the above issues. A supplemental brief and other supporting documents shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. Plaintiff is ordered to give notice and to file a proof of service at least 5 court days before the hearing.
2	Danforth v. Placentia-Linda Hospital, Inc. 2023-01321351	Off calendar.
3	Martinez v. EM Tortillas, LLC 2022-01263512	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$225,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. Are the parties aware of any related pending actions or other cases that may be impacted by the settlement? 2. Is the "Plaintiff's General Release Payment" (Settlement Agreement ¶ 18) in addition to the "enhancement payment" sought in the motion for approval? The "Plaintiff's General Release Payment" appears to be a payment to settle plaintiff's individual claims in exchange for plaintiff's release. <i>See id.</i> The enhancement payment described in the motion appears intended to compensate plaintiff for her efforts working on the litigation. If